THE STATE

AND

DANIEL CHAMISA

IN THE HIGH COURT OF ZIMBABWE
NDUNA J
BULAWAYO 6 AND 16 JULY 2026

Assessors: Mr Dewa
Mr Sibanda

Ruling in terms of Section 198(3) of the Code

Ms T. P Mutarisi with K Shava, for the state
Ms T. F Nyathi (Ms NV Moyo), for the accused

NDUNA J: At the close of the state case, the accused, who still is legally represented by his legal representative, brought an application for his discharge in terms of *section 198(3) of the Criminal Procedure and Evidence Act [Chapter 9:07]; the Code*. For the sake of completeness, I find it prudent to state the provision of *section 198(3)* which provides that:

> "(3) If at the close of the case for the prosecution the court considers that there is no evidence that the accused committed the offence charged in the indictment, summons or charge, or any other offence of which he might be convicted thereon, it shall return a verdict of not guilty."

In the matter of *S v Dewani [2014] ZAWCHHC 188) at para 15,* the legal position regarding applications in terms of *section 198(3)* [s.174] was summarised as follows:

> "a) An accused person is entitled to be discharged at the close of the case for the prosecution if there is no possibility of a conviction other than if he enters the witness box and incriminates himself;
>
> b) In deciding whether the accused person is entitled to be discharged at the close of the state's case, the court may take into account the credibility of the State witnesses, even if only to a limited extent;
>
> c) Where the evidence of the State witnesses implicating the accused is of such poor quality that it cannot be safely relied upon, and there is accordingly no

> credible evidence on record upon which a court, acting carefully, may convict at, an application for discharge should be granted."

The test applicable in the nature of this application is that the prosecution must establish a prima facie case against the accused as opposed to the applicable test in criminal cases being that the State must prove its case beyond reasonable doubt (see *S v Hepworth 1928 AD 265)*. Locally it has been held that the accused is entitled to be discharged without giving evidence if no case has been made against him. (see *The State vs Petronella Nyarugwe HH42-16 ; S v Kachipare 1998 (2) ZLR 271 (S)*, and as many other decisions as one may want to refer to).

It has been held that the test whether the court ought or must discharge the accused at the close of the State case is as follows as per *The State vs Nyarugwe* (supra);

The court should discharge the accused at the close of the case for the prosecution where:-

> (a) There is no evidence to prove an essential element of the offence (A-G v Bvuma & Anor 1987 (2) ZLR 96…,.);
>
> (b) There is no evidence on which a reasonable court acting carefully might properly convict (A-G v Mzizi 1991 (2) ZLR 321…,.);
>
> (c) The evidence adduced on behalf of the State is so manifestly unreliable that no reasonable court could safely act on it (A-G v Tarwireyi 1997 (1) ZLR 575…,.).

The court in resolving a dispute between the state and the defence must discharge an accused where there is no evidence of a possible conviction if the accused enters the witness box and keeps quiet. If the accused is capable of being convicted when he retains his silence, the he must be put to his defence.

In this case, the evidence received was from the deceased's wife, his girlfriend, a relative, and a police officer.In summary, the evidence of the deceased's wife was that on 3 December 2025, she searched for the deceased and got into contact with the deceased's girlfriend, Kudakwashe Ngurunda. She asked her about the whereabouts of the deceased, and she professed no knowledge. She, of course, searched around but to no avail.

The deceased's girlfriend also testified in the matter. Her evidence was that she had seen the accused on the day of the deceased's disappearance. She was the one who

indicated that the deceased would visit the accused, who is a prophet. Through her inquiries, Mercy Moyo managed to establish that the deceased had indeed paid a visit to the accused.

The third State witness was Tapiwa Tawanda Musindo. His evidence related to his efforts to trace the deceased through the accused, but to no avail.

The police officer testified that he had arrested the accused. The accused had allegedly "run away" with a client's motor vehicle. The vehicle was later found along the Masvingo Road, having developed a mechanical fault. However, there is no prosecution pending in respect of the alleged theft of the motor vehicle.

The deceased was later found dead, about four days after his disappearance.

The State and the defence addressed the court, with the defence applying for the accused's discharge at the close of the State case. The State opposed the application and relied on the case of *Simango v The State SC42/2014*. I believe it is proper to state that the case of *Simango* is totally different from the case before this court. In that case, the accused led to the recovery of the sandals worn by the deceased. A pair of his blood-stained trousers was also recovered. The blood was tested and found to be of the same group as that of the deceased. That case is therefore wholly distinguishable from the present matter. It was not a single-witness case, and there was a substantial body of relevant evidence linking the accused to the offence.

It is clear that there is no viable evidence upon which this court can rely to place the accused on his defence. This is a prosecution that should not have been commenced at all. Efforts should have been made to trace the cell phones that the deceased had, as these were never recovered.

The defence's application should therefore be granted. There is no evidence before the court requiring the accused to answer the allegations against him. He is accordingly found not guilty and acquitted at the close of the State case.

He is therefore discharged at the close of the State case and is entitled to a verdict of not guilty. He is accordingly acquitted of the charge.

National Prosecution Authority, state's legal practitioners
Makiya and Partners, accused's legal practitioners